

PERSONNEL

56 Attachment 5

City of Waterville

Appendix E Domestic Violence Workplace Policy

I. STATEMENT OF PURPOSE

The City of Waterville (hereinafter “the City”) is committed to promoting the health and safety of its employees. This commitment includes the prevention and reduction of the incidence and effects of domestic violence.

While the City recognizes that both men and women are victims of domestic violence, the overwhelming majority of victims of domestic violence are women. In fact, domestic violence is the leading cause of injury to women in the United States.

The City recognizes that domestic violence is a workplace issue. Domestic violence does not stay at home when victims go to work. Victims may be especially vulnerable while they are at work. Domestic violence can compromise the safety of employees and directly interfere with the mission of the City by decreasing morale and productivity, as well as by increasing absenteeism and health costs.

For these reasons, the City has established this workplace domestic violence policy. The specific purposes of the policy are to:

- Create a supportive workplace environment in which employees feel comfortable discussing domestic violence issues and seeking assistance for domestic violence situations;
- Develop responsive policies and procedures to assist employees who are affected by domestic violence;
- Provide immediate assistance to victims;
- Provide assistance and/or disciplinary action to employees who are perpetrators of abuse; and
- Offer training on recognizing and responding to domestic violence.

This policy recognizes that, in accordance with state law, 26 M.R.S. § 850, an employer must grant reasonable and necessary leave from work, with or without pay, to an employee who is a victim to prepare for and attend court proceedings; receive medical treatment; attend to the medical treatment of a child, parent or spouse who is a victim; or obtain necessary services to remedy a crisis caused by domestic violence, sexual assault or stalking. The necessity of the leave must be based upon the employee or the employee’s daughter, son, parent or spouse being a victim of violence, assault, sexual assault, stalking or any act that would support an order for protection from abuse.

The City will not tolerate any act of domestic violence in the workplace, and will take action to prevent and correct the misuse of the City’s resources in connection with any act of domestic violence. Misuse of the City’s resources in connection with any act of domestic violence will result in discipline up to and including discharge.

WATERVILLE CODE

II. DEFINITIONS

- A. Domestic Violence: A pattern of coercive behavior that is used by a person against family or household members to gain power or control over the other party in the relationship. This behavior may include any of the following: physical violence, sexual abuse, emotional and psychological intimidation, verbal abuse and threats, stalking, isolation from friends and family, economic control and destruction of personal property. Domestic violence occurs between people of all racial, economic, educational and religious backgrounds. It occurs in heterosexual and same-sex relationships, between married and unmarried partners, between current and former partners and between other family and household members.
- B. Batterer, Perpetrator, or Abuser: An individual who commits an act of domestic violence.
- C. Survivor or Victim: An individual subjected to an act of domestic violence.
- D. Domestic Violence Response Team/Responder: The City Manager and/or Human Resources Officer.

III. STATEMENT OF CONFIDENTIALITY

The City recognizes and respects a victim's need for confidentiality and autonomy. To the extent permitted by law and unless the substance of the employee's disclosure demands otherwise, the City will maintain the confidentiality of the victim's disclosure. Responders will share disclosures with the Human Resource Officer and/or City Manager. However, unless necessary, the information will not be shared with other employees in the City. Whenever possible, the employee will be given notice of necessary further disclosures. Further disclosure may be necessary if, in the opinion of the person to whom the initial disclosure is made, an abuser presents a threat to the safety of any person, the victim has expressed homicidal or suicidal intentions, or there is reasonable cause to suspect abuse, neglect or exploitation of children or incapacitated or dependent adults.

IV. EDUCATION AND OUTREACH

- A. This policy will be distributed to all current employees. New employees will receive the policy upon commencing employment. All employees are expected to become familiar with this policy and to attend domestic violence training as provided by the City.
- B. The Human Resource Officer, in consultation with the City Manager, will attempt to maintain, publish and post a list of resources for survivors of domestic violence in locations of high visibility.

V. RESPONSE AND ASSISTANCE

- A. Disclosure; Requests for Information, Referral, and Assistance. The City seeks to offer support and referrals for assistance to those employees who disclose concerns or request help. The City will designate trained person(s) to whom disclosures may be made. Designated persons are the Human Resource Officer, City Manager and department

PERSONNEL

heads. All employees wishing to discuss domestic violence issues are encouraged to speak with whomever they are most comfortable.

B. Response to Victims.

1. The City recognizes all persons' rights to privacy, autonomy and safety, and the corresponding need to control the process following any disclosure. To the extent that disclosures do not implicate issues of workplace safety and performance, and to the extent permitted by law and this policy, the City's response will be guided by the expressed wishes of the victim, and may include the following:
 - a. Referrals to appropriate agencies and services, including EAP, domestic violence and sexual assault hotlines, local shelters and advocates, legal services, law enforcement, medical and counseling services;
 - b. Assessment of the victim's need to be absent from work;
 - c. Information regarding employment benefits, including processes for changing insurance benefits, requesting paid and unpaid leave and changing pay arrangements (such as direct deposit of paychecks); and
 - d. Information regarding the availability of unemployment benefits in certain circumstances.
2. Any person who is concerned about his or her safety at work should speak to the Human Resource Officer, City Manager and/or department head. The City will immediately contact the local Police Department in the event of imminent danger.
3. If domestic violence is occurring in the workplace, is affecting the performance of the victim or the victim's co-workers or if the victim otherwise requests, the City will assist the victim by:
 - a. Referring individuals to appropriate agencies and services, including EAP, domestic violence and sexual assault hotlines, local shelters and advocates, legal services, law enforcement, medical and counseling services;
 - b. Developing an individualized workplace safety plan in conjunction with appropriate agencies and services. The City and the victim may consider, for example, screening telephone calls, changing the affected employee's phone extension or physical location, arranging for escort to and from parking areas, changing work schedules and providing information concerning the perpetrator to law enforcement and/or the receptionist.
4. If any person is at immediate risk in the workplace, the City will follow protocols for notifying law enforcement and follow applicable emergency or safety procedures.
5. Victims are encouraged to disclose the existence of temporary and permanent orders for protection from abuse or harassment to a responder, especially where the order

WATERVILLE CODE

includes a provision that the perpetrator is not to have contact with the victim at the victim's place of employment. The responder will follow the provisions of this policy with respect to response and assistance to the victim and address the issue of safety plans with the victim as appropriate.

C. Response to Employees Concerned about Domestic Violence.

1. If an employee has a concern that a co-worker is a victim of domestic violence, the employee is encouraged to contact the Human Resource Officer, City Manager and/or department head. The responder will work with the concerned employee to decide how best to approach the victim. In addition, the responder may discuss the matter with the department head if there is an immediate safety risk to anyone in the workplace, or if the perceived problem has an effect on the workplace, including but not limited to safety, job performance and morale. The responder will maintain the confidentiality of the disclosing employee to the extent permitted by law and this policy.
2. If an employee experiences or witnesses violence or threats of violence in the workplace, the employee should report the incident to a supervisor or Police Department personnel immediately.

VI. DOCUMENTATION

The Human Resource Officer will maintain copies of orders for protection from abuse and other documents that demonstrate workplace domestic violence in a confidential file. The City will develop necessary protocols related to maintaining records of domestic violence disclosures.

VII. WORK PERFORMANCE

The City recognizes that victims of domestic violence may have performance or conduct problems, such as chronic absenteeism or an inability to concentrate, because of the abuse.

When an employee confides that job performance or a conduct problem is caused by domestic violence, referrals and assistance should be offered in accordance with this policy.

The Human Resource Officer or supervisor, in collaboration with the employee and any other appropriate agencies, which may include the EAP, the Bureau of Human Resources or the collective bargaining agreement, should allow a reasonable amount of time away from work for the employee to obtain assistance regarding domestic violence. This time may be drawn from sick or vacation leave, unpaid leave or a leave bank, as determined appropriate and available. Any such leave will be consistent, at a minimum, with 26 M.R.S. § 850.

Nothing in this policy alters the authority of the City to establish performance expectations, counsel employees, impose discipline, reassign duties, place an employee on leave or take other action as it deems appropriate.

PERSONNEL

VIII. PERPETRATORS

If an employee discloses that he or she is or has been a perpetrator of domestic violence, the responder should refer the employee to EAP and a local state-certified Batterers' Intervention Project. In every situation where an employee makes this disclosure, the Human Resource Officer or other appropriate individual will immediately be included in the discussion related to the disclosure.

Any incident of domestic violence committed by an employee while on City premises, during working hours or at a City-sponsored event will not be tolerated. Employees found to have violated this policy will be subject to corrective or disciplinary action, up to and including discharge.

IX. CONCLUSION

The City is committed to providing a supportive workplace environment free of domestic violence. The City will work to respond and provide immediate assistance to a victim who seeks it. Victims will be treated with compassion and will not be judged.

Employees with questions about this policy or ideas to improve this policy should contact the Human Resource Officer.

Effective Date: November 2011